
Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-02308	TEG PARTNERS, LLC VS. BRAD J LUCAS, ET AL
TEG PARTNERS, LLC BRAD J LUCAS	CHARLES H. RIBLE ELIZABETH M. PAPPY

Plaintiff's (Amended) Demurrer to Defendants' First Amended Answer to the Verified Fifth Amended Complaint

TENTATIVE RULING:

Plaintiff Teg Partners, LLC's Demurrer to Defendants Brad J. Lucas' and Melanie Lucas' First Amended Answer to the Fifth Amended Complaint is SUSTAINED-in-part with Leave to Amend.

This case involves a dispute over land lying between the respective real property of Plaintiff Teg Partners, LLC ("Teg") on the one hand and Defendants Brad J. Lucas and Melanie Lucas (the "Lucases") on the other. The Fifth Amended Complaint (the "5AC") alleges that the strip of land is a paper street ("Hermosa Avenue") per a subdivision map recorded on August 5, 1907. (See Jul. 14, 2025 Fifth Amended Complaint ("5AC"), ¶¶ 11–13, Exhs. 4–5.)

The 5AC also alleges that the strip of land (hereafter, the "Disputed Property") was the subject of a prior action—*Tejinder Singh, et al. v. Erica Steiner*, case no. 18CIV01684 (the "Steiner Action")—in which Teg, as plaintiff, stipulated to a default judgment granting it an implied easement for ingress and egress over the entirety of the Disputed Property. (5AC, ¶ 16, Exh. 6.) The defendant in the Steiner Action is alleged to be the Lucases' predecessor-in-interest. (*Id.*, at ¶ 16.)

In the present action, Teg seeks declaratory relief and injunctive relief to pave the Disputed Property in order to exercise its right of ingress and egress and develop its own parcel. (5AC, ¶¶ 17–19, 57–59, 61.) The Lucases filed a First Amended Answer ("FAA" or "Answer") to the 5AC on June 26, 2026, to which Teg now demurs.

A. Legal Standard on Demurrer to Answer

"In most respects, the demurrer to the answer ... is governed by the same rules as those applicable to the demurrer to the complaint." (5 Witkin, Cal. Proc. (6th ed. 2026) Pleading, § 1224.)

These well-defined principles include the following: "A demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice" [citation]; the allegations of the pleading demurred to must be

regarded as true [citations]; a demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading [citations], or the construction placed on an instrument pleaded therein [citations], or facts impossible in law [citation], or allegations contrary to facts of which a court may take judicial knowledge. [Citations.]

(*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) However unlike a demurrer to a complaint, on a demurrer to an answer “the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” *Id.* at 733. This is the same standard applied by the Court of Appeal when it stated that “terse legal conclusions, rather than as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint[,]’” were insufficient to plead an affirmative defense in *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.

B. Sufficiency of Factual Allegations in Support of Affirmative Defenses

As mentioned above, an affirmative defense must be pleaded by allegations of ultimate fact and not legal conclusions. Each of the challenged affirmative defenses are addressed below.

Second Affirmative Defense (Waiver) – there are sufficient factual allegations in referencing the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Third Affirmative Defense (Estoppel) - there are sufficient factual allegations in referencing instances of Plaintiff’s past trespass and/or loitering on Defendants’ property, and again the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Fourth Affirmative Defense (Laches) – there are sufficient factual allegations in referencing faded memories, unavailable witnesses, and/or loss of documents regarding the quitclaim deed by Lyle Church. Additional details of the quitclaim by Lyle Church are in the 5AC ¶ 31, Exh. 9 and elsewhere in the 5AC. In this regard, while ¶ 31 of the 5AC was not answered due to a prior demurrer ruling, the allegations were incorporated by reference. 5AC, ¶¶ 56 and 60. The Court is thus able to consider and/or take judicial notice (Evid. Code § 452(h)) of the Exh. 9 Lyle Church Quitclaim Deed recorded on June 6, 2007, a recording date from almost 20 years ago, such that laches may apply.

Fifth Affirmative Defense (Consent and Authorization) - there are sufficient factual allegations in referencing the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer. Further the referenced agreement, can also be a consent or authorization, and not an actual contract as argued by Plaintiff.

Sixth Affirmative Defense (Unclean Hands) - there are sufficient factual allegations in referencing instances of Plaintiff's past trespass and/or loitering on Defendants' property, and again the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Eighth Affirmative Defense (Preemption and/or Compliance with Law) - demurrer is sustained as this defense cited no specific law, nor any ultimate facts.

Ninth Affirmative Defense (Non-joinder/Misjoinder) – demurrer is sustained as this defense cited no ultimate facts, to wit, potentially responsible parties are not identified.

Twelfth Affirmative Defense (Balancing of Convenience/Relative Hardship) – there are sufficient factual allegations in this defense. Plaintiff's main argument is that the 5AC "does not contain a cause of action for nuisance." Motion, pg. 15, line 1. That is correct, but Plaintiff also mis-cites the defense as it is not a defense entitled "Nuisance and Relative Hardship." Motion, pg. 14, line 12. Instead, the defense in its body refers to "the condition alleged by Plaintiff to be a nuisance." Answer, pg. 10, lines 4-5. The complaint then refers to an actual controversy, in part, that Plaintiff claims the right to have vehicular access to the Hermosa Avenue Segment, but Defendants have refused the request for vehicular access, which dispute appears to be the referenced nuisance. 5AC, ¶¶ 19 and 57. Factual allegations are then made that Plaintiff's property has access to a public road without the easement.

C. Requirement to Identify Cause of Action

Teg also contends that the challenged affirmative defenses do not "refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished" as required by statute. (Code Civ. Proc., § 431.30, subd. (g).) Notably, Teg offers no caselaw establishing when a pleading does or does not meet this requirement. However, as the Lucases point out—albeit without crystal-clear clarification—each defense states that Teg's 'claims' are barred, presumably referring to both the remaining causes of action in the 5AC. This is sufficient. (See also Cal. Rules of Court, rule 2.112 [setting forth the requirements for pleading separate defenses & omitting any requirement that numbered causes of action be identified].)

D. Conclusion

Accordingly, the demurrer is SUSTAINED as to the eighth and ninth affirmative defenses set forth in the FAA and OVERRULED as to the remainder. Leave to amend is GRANTED as a matter of fairness. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) If Defendant chooses to amend, the amendment is due 10 days after service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

25-CIV-00184 MARIA J. MIRANDA HENAO VS. TOYOTA MOTOR SALES, U.S.A., INC.

MARIA J. MIRANDA HENAO
TOYOTA MOTOR SALES, U.S.A., INC.

DONALD E MAHNKE
MICHAEL J HURVTIZ

Defendant's Motion to Compel Vehicle Inspection and Request for Sanctions

TENTATIVE RULING:

Defendant Toyota Motor Sales, U.S.A., Inc.'s ("Toyota") Motion to Compel Vehicle Inspection and Request for Sanctions is GRANTED.

Summary of Facts

This is an automotive warranty action where Plaintiff Maria J. Miranda Henao ("Plaintiff") seeks restitution for a 2024 Toyota RAV4 (the "Subject Vehicle") pursuant to the Song-Beverly Consumer Warranty Act. Plaintiff filed this action on January 9, 2025. On February 27, 2025, Defendant Toyota served a Notice of Vehicle Inspection for May 12, 2025. Critchlow Decl., ¶ 2, Exh. A. On April 23, 2025, Plaintiff served objections. Critchlow Decl., ¶ 3, Exh. B. Thereafter, Defendant attempted to meet and confer at least on six different occasions, where Plaintiff inexplicably did not respond. Critchlow Decl., ¶¶ 4-8, 11, Exh.'s C and E.

After the filing of the Motion, an Informal Discovery Conference ("IDC") was held before the Civil Commissioner. Relevantly, at the IDC Plaintiff finally agreed that the deposition could be scheduled for November 17, 2026 and the vehicle inspection for December 10, 2026. Minute Order, 08/11/2026. However, Defendant maintained these motion to ensure compliance and to seek sanctions. The motion is unopposed.

Legal Discussion

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. Code of Civil Procedure ("CCP") Section 2017.010(a). For discovery purposes, information should be regarded as "relevant to the subject matter" if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288, emphasis added.); *in accord*, *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.
